

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201801786	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/05/2018 1:30 PM, Tuesday, 03/06/2018	Location of Incident: Pulaski Bridge off-ramp; 94th Precinct stationhouse	Precinct: 94	18 Mo. SOL 9/5/2019	EO SOL 9/5/2019	
Date/Time CV Reported Tue, 03/06/2018 7:48 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 03/06/2018 7:48 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Julia Nazim	16203	950939	094 PCT
2. SGT Michael Hall	01937	934986	094 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Irene Gonzalez	26374	931694	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Julia Nazim	Abuse: On March 5, 2018, at the Pulaski Bridge off-ramp in Brooklyn, Police Officer Julia Nazim took a photograph of § 87(2)(b) [REDACTED]	[REDACTED]
B.SGT Michael Hall	Abuse: On March 6, 2018, at the 94th Precinct stationhouse, Sergeant Michael Hall questioned § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On March 6, 2018, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

At approximately 1:30 p.m. on March 5, 2018, § 87(2)(b) was pulled over for speeding at the southbound Pulaski Bridge off-ramp in Brooklyn by PO Julia Nazim of the 94th Precinct. PO Nazim issued § 87(2)(b) a summons for speeding. § 87(2)(b) left after receiving his summons, but PO Nazim remained at the off-ramp. Several minutes later, § 87(2)(b) returned to the off-ramp and started to record PO Nazim on his cell phone. PO Nazim responded by taking out her personal cell phone and photographing § 87(2)(b) (**Allegation A – Abuse of Authority: Photography**, § 87(2)(g)).

At approximately 7:00 a.m. on March 6, 2018, § 87(2)(b) traveled to the 94th Precinct stationhouse in order to file a complaint against PO Nazim. He spoke to several unidentified officers at the front desk. § 87(2)(b) told the officers that he wished to file a complaint. He deliberately refused to tell the officers that the complaint was against a police officer. The officers at the desk told him that they did not have any forms that they could give him. § 87(2)(b) became upset and left the stationhouse.

At approximately 8:30 a.m., he returned to the stationhouse and spoke to several different officers at the front desk, including Sgt. Michael Hall and PO Irene Gonzalez. § 87(2)(b) again stated that he wished to file a complaint. This time, he specified that the complaint was against a police officer. PO Gonzalez told § 87(2)(b) to wait by the front desk while she retrieved a civilian complaint report for him. As § 87(2)(b) waited, Sgt. Hall approached him and asked to speak to him outside of the building. There, Sgt. Hall asked § 87(2)(b) for identification. After § 87(2)(b) provided it, Sgt. Hall asked if he could run a check on § 87(2)(b) license (**Allegation B: Abuse of Authority – Question**, § 87(2)(g)). § 87(2)(b) refused and took his identification back. Several minutes later, PO Gonzalez returned with § 87(2)(b) civilian complaint report. § 87(2)(b) took the document and left the stationhouse. He ultimately did not fill the form out, and instead filed his complaint with the CCRB directly.

§ 87(2)(b) recorded PO Nazim during their second interaction on March 5, 2018. It was attached in IA #57 (See Board Review #01: Video Footage) and summarized in IA #58 (See Board Review #02: Video Summary). No other video footage was found for this incident. A SnagIt capture depicting the relevant portion of the video has been attached below.

Findings and Recommendations

Allegation (A) Abuse of Authority: On March 5, 2018, at the Pulaski Bridge off-ramp in Brooklyn, Police Officer Julia Nazim took a photograph of § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on March 21, 2018 (See Board Review #03: § 87(2)(b) Statement). He stated that PO Nazim pulled him over at the Pulaski Bridge off-ramp and accused him of speeding. PO Nazim was alone at the time. § 87(2)(b) disputed the stop,

stating that he was driving under the posted speed limit. Despite his objections, PO Nazim issued § 87(2)(b) a summons for speeding. § 87(2)(b) drove away, but returned to the area several minutes later in order to document the posted speed limits along the bridge. When § 87(2)(b) passed by the off-ramp again, he saw that PO Nazim was parked in the same location as before. § 87(2)(b) pulled over and recorded PO Nazim on his cell phone. PO Nazim responded to this action by taking out a cell phone in a pink case and holding it up towards § 87(2)(b) for a few seconds. § 87(2)(b) then drove away.

§ 87(2)(b) recorded this interaction with PO Nazim on a cell phone. A SnagIt capture of the interaction has been attached below (See Board Review #04: SnagIt Capture). In it, a female is seen sitting in the front seat of a silver sedan. The female waves towards the camera. At 0:16, she holds up a pink rectangular object for a few seconds before putting it down. The video then ends.



201801786 - SnagIt.mp4

PO Nazim was interviewed at the CCRB on May 8, 2018 (See Board Review #05: PO Nazim's Statement). On March 5, 2018, PO Nazim was assigned to a post at the Pulaski Bridge off-ramp, where she watched for speeding motorists coming off of the bridge. She was assigned to an unmarked silver sedan. During this time, PO Nazim pulled § 87(2)(b) over for speeding at the Pulaski Bridge off-ramp. § 87(2)(b) left the area after he received his summons. Several minutes later, a minivan pulled up to the intersection. PO Nazim did not recall if this was the same vehicle that § 87(2)(b) had been driving earlier. She could not see who was in the minivan, and did not recall if § 87(2)(b) was riding in it. Somebody inside of the minivan waved towards PO Nazim. PO Nazim responded by waving back to them. PO Nazim then took out her personal cell phone, which she keeps in a pink case. PO Nazim used her phone to take a photograph of the area around the off-ramp. She explained that she took the photograph in order to document the layout of the area for when she appeared in traffic court to defend the summonses she issued throughout the day. When asked why she took the photograph at that particular time, rather than at any other point during her tour, PO Nazim stated that there was no specific reason. When asked why she used her personal cell phone to take the photograph rather than her department-issued phone, PO Nazim again stated that there was no specific reason. PO Nazim denied that she was photographing the minivan or its occupants. She denied recording any videos.

PO Nazim was shown § 87(2)(b) cell phone video. She identified herself as the female sitting in the silver sedan. She identified the pink object that she is seen holding up as her personal cell phone. PO Nazim explained that she was holding her phone up in order to take a photograph of the area.

NYPD Operations Order #20 states that members of the service may not use their personal cellular telephones, smartphones or tablets during their tour, except while on authorized meal or in case of an emergency (See Board Review #06: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: On March 6, 2018, at the 94th Precinct stationhouse, Sergeant Michael Hall questioned § 87(2)(b)

§ 87(2)(b) alleged that he visited the 94th Precinct stationhouse twice on March 6, 2018 in an effort to file a complaint against PO Nazim. The first visit was at 7:00 a.m. and the second was at 8:30 a.m. PO Nazim herself was not present during either visit. During the first visit, § 87(2)(b) deliberately avoided stating that he wished to file a complaint against a police officer. During the second visit, he spoke to Sgt. Hall and PO Gonzalez by the front desk. When § 87(2)(b) told Sgt. Hall and PO Gonzalez that he wanted to file a complaint against a police officer, PO Gonzalez asked § 87(2)(b) to wait by the front desk while she looked for a copy of the form. She then left the room. Sgt. Hall then asked § 87(2)(b) if they could speak outside of the stationhouse. § 87(2)(b) agreed. Once they were outside, Sgt. Hall asked § 87(2)(b) for his identification. § 87(2)(b) asked Sgt. Hall if he had done something wrong, or if he was suspected of any wrongdoing. Sgt. Hall told him that he was not. § 87(2)(b) handed Sgt. Hall his driver's license. Sgt. Hall then asked § 87(2)(b) if he could run a check on the license. § 87(2)(b) told Sgt. Hall that he did not consent to any such check. He asked Sgt. Hall for his license back. Sgt. Hall looked at the license for several more seconds before returning it to § 87(2)(b) and Sgt. Hall did not have any further interaction with each other.

Sgt. Hall was interviewed at the CCRB on April 25, 2018 (See Board Review #07: Sgt. Hall's Statement). He was working at the front desk during § 87(2)(b) second visit to the stationhouse at approximately 8:30 a.m. He was not aware of § 87(2)(b) having visited the stationhouse earlier at around 7:00 a.m. There were several other officers with Sgt. Hall at the desk, but he did not recall who they were. When § 87(2)(b) approached the desk, he asked to file a complaint against a police officer. An unidentified officer went to go find a civilian complaint report for § 87(2)(b). While they waited for the officer to return, Sgt. Hall asked § 87(2)(b) for his identification. He did so in order to learn § 87(2)(b) name. Sgt. Hall wanted to know § 87(2)(b) name so that he could document the fact that § 87(2)(b) filed a complaint at the stationhouse. § 87(2)(b) gave over his driver's license. Sgt. Hall reviewed § 87(2)(b) name on the license and then returned it. Sgt. Hall denied that he asked § 87(2)(b) if he could run any checks using the license. He denied that he suspected § 87(2)(b) of being involved in any criminal activity or having any active warrants. § 87(2)(b) ultimately did not use the form to file a complaint at the stationhouse.

PO Gonzalez was interviewed at the CCRB on May 8, 2018 (See Board Review #08: PO Gonzalez's Statement). At the time of the incident on March 6, 2018, PO Gonzalez worked as a property specialist at the 94th Precinct stationhouse. She was uncertain if she recalled the incident. PO Gonzalez did recall speaking to an agitated civilian at the stationhouse at one point, but she was uncertain of the date or time of this interaction. She did not know if this civilian was § 87(2)(b) or somebody else. PO Gonzalez recalled that this civilian asked to file a complaint against an officer. PO Gonzalez retrieved a form for the civilian, but she did not know if the form was a civilian complaint report. PO Gonzalez did not recall seeing this civilian speak to Sgt. Hall

or any other officers. She did not recall any officers asking the civilian for identification, or permission to run a check using their identification.

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (See Board Review #09: § 87(2)(b) CCRB History).
- PO Nazim has been a member of the service for six years and has been a subject in four previous CCRB complaints and five allegations, of which one was substantiated:
 - 201506414 involved a substantiated allegation of refusal to provide name and/or shield number against PO Nazim. The Board recommended that she receive formalized training. The NYPD imposed formalized training.
- Sgt. Hall has been a member of the service for thirteen years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim request was submitted to the NYC Office of the Comptroller on May 21, 2018. It will be included in the case file upon receipt.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Allegations Not Pleaded

- It is undisputed that PO Nazim pulled § 87(2)(b) over at approximately 1:30 p.m. on March 5, 2018 and accused § 87(2)(b) of speeding. PO Nazim subsequently issued § 87(2)(b) a summons for speeding. § 87(2)(g)
- § 87(2)(b) stated that when he first went to the 94th Precinct stationhouse at 7:00 a.m. on March 6, 2018, he approached a group of unidentified officers who were working behind or adjacent to the front desk. He told these officers that he wanted a “complaint form.” The officers asked § 87(2)(b) for additional information about his complaint, but § 87(2)(b) refused to discuss the complaint. § 87(2)(b) deliberately avoided telling the officers that his complaint was against a police officer. He asked to be given a form that he could take home, fill out, and then mail in later. The officers told § 87(2)(b) that they could take down complaint information at the stationhouse, but did not have a form to give § 87(2)(b) that he could take home with him. § 87(2)(b) became upset and left the stationhouse. § 87(2)(b) was later given a civilian complaint report when he returned to the stationhouse and explained to Sgt. Hall and PO Gonzalez that his complaint was against a police officer. § 87(2)(g)

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date